

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK  
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JAYROM JACKSON,

Plaintiff,

-against-

**SUMMONS**

THE CITY OF NEW YORK, NEW YORK  
CITY POLICE DEPARTMENT, POLICE  
OFFICER JOAQUIN SEPULVEDA,  
SHIELD NO.: 13127, LIEUTENANT  
JAMES LEE OF THE 9<sup>TH</sup> PRECINCT,  
POLICE OFFICER RUBY CHAU, SHIELD  
NO.: 04282 AND OTHER UNNAMED  
POLICE OFFICERS,

INDEX NO.:

Defendant.  
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TO THE ABOVE NAMED DEFENDANTS:

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: May 4, 2017  
Defendants' address: 1 Police Plaza  
New York, NY

  
ELLIOT H. FULD  
930 Grand Concourse-Suite 1G  
Bronx, NY 10451  
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$2,000,000.00 with interest plus punitive damages from January 1, 2017 and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF NEW YORK

JAYROM JACKSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER  
JOAQUIN SEPULVEDA, SHIELD NO.: 13127,  
LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup>  
PRECINCT, POLICE OFFICER RUBY CHAU,  
SHIELD NO.: 04282 AND OTHER UNNAMED  
POLICE OFFICERS,

Defendant.

VERIFIED COMPLAINT

INDEX NO.: \_\_\_\_\_

Law Dept. #:2017PI002291

JAYROM JACKSON, by his attorney, Elliot H. Fuld, complains of the Defendants and alleges, upon information and belief as follows:

1. JAYROM JACKSON was, at all times of the incident described in this complaint, a resident of the City and State of New York, County of New York.
2. POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police officers were and at all times herein and upon information and belief, are police officers with the New York City Police Department with regard to the incidents described herein.
3. POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police

officers were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police officers, as employees of the New York City Police Department, were acting as agents, servants and/or employees of the City of New York.
5. THE CITY OF NEW YORK, at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

**AND AS FOR A FIRST CAUSE OF ACTION**

6. On or about January 1, 2017, at approximately 3:55 A.M., POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police officers forcibly seized and detained Plaintiff herein in the area of Houston Street and Baruch Place in New York County.
7. Defendants falsely alleged that Plaintiff was acting disorderly.
8. POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police officers assaulted Plaintiff at said address.
9. POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police

officers grabbed Plaintiff, threw him onto the ground, kicked him in the back and abused Plaintiff.

10. POLICE OFFICER JOAQUIN SEPULVEDA, SHIELD NO.: 13127, LIEUTENANT JAMES LEE OF THE 9<sup>TH</sup> PRECINCT, POLICE OFFICER RUBY CHAU, SHIELD NO.: 04282 and other unnamed police officers then handcuffed Plaintiff and in so doing, injured Plaintiff's left wrist and right elbow.

11. Plaintiff was then taken to the 9<sup>th</sup> Precinct where he was photographed, fingerprinted and placed in a cell for hours.

12. Plaintiff was then taken to Beth Israel Hospital where the police then handcuffed Plaintiff to his bed.

13. After Plaintiff was finished being treated at the hospital, Defendants once again took Plaintiff to the 9<sup>th</sup> precinct.

14. The officers told plaintiff that he was forcibly seized because the officers mistakenly thought that Plaintiff was involved in some type of "gang war".

15. The officers were mistaken in that belief and there was no evidence or indication that said theory was accurate.

16. Upon information and belief, the Defendants detained plaintiff because he was a large, African-American male and the only similarity and/or connection between Plaintiff And the sought-after individuals was that they all were African-American.



17. Defendants then transported Plaintiff to the New York County Criminal Court where he was held for thirteen to fourteen more hours before being brought before a Judge.

18. Defendants charged Plaintiff with Disorderly Conduct, Resisting Arrest and Obstructing Governmental Administration.

19. Plaintiff was released from Arraignment Court after being in custody for more than thirty-six (36) hours.

20. The Defendant's stop of Plaintiff was without reasonable suspicion and without any justification in law or in fact.

21. Defendant's seizure and detention of Plaintiff was without probable cause and without justification in law or in fact.

22. Plaintiff was forced to expend monies on medical care because of Defendants' actions and assault and lost several weeks from work and suffered a loss of wages therefor.

23. As of the filing of this Complaint, Plaintiff has had to appear in court for the criminal charges on January 1, 2017, March 8, 2017 and April 27, 2017.

24. On or about January 13, 2017, Plaintiff, by prior counsel, served upon the Comptroller of the City of New York, a Notice of Claim as required by the General Municipal Law.

25. That more than thirty (30) days have elapsed since the service of these Claims and the adjustment or payment thereof has been neglected or refused.

26. That on March 29, 2017, Plaintiff was orally examined under oath pursuant to section 50-h of the General Municipal Law.

27. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the stop, search and detention of January 1, 2017.

28. As a result of the false arrest of Plaintiff by Defendants, Plaintiff demands judgment against the Defendants and was damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

**AND AS FOR A SECOND CAUSE OF ACTION**

29. Plaintiff repeats all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth herein.

30. As a result of Defendants' actions, Plaintiff was falsely detained and imprisoned and suffered injuries as described aforesaid.

31. That at the time of Plaintiff's imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiff should not have been detained, handcuffed and/or held at gunpoint.

32. That the Defendants, their agents, servants and/or employees failed, refused or neglected to undertake any measures which could have prevented Plaintiff's detention and/or resulted in Plaintiff's release.

33. In view of the foregoing, Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

**AND AS FOR A THIRD CAUSE OF ACTION**

34. Plaintiff repeats all the allegations contained in paragraphs "1" through "33" inclusive as though more fully set forth herein.

35. Defendants assaulted Plaintiff when they performed the actions as described above.

36. Defendants intended to cause injury to Plaintiff and caused said injury.

37. In view of the foregoing, Plaintiff has been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

**AND AS FOR A FOURTH CAUSE OF ACTION**

38. Plaintiff repeats all the allegations contained in paragraphs "1" through "37" inclusive as though more fully set forth herein.

39. That the Defendants, their agents, servants and/or employees initiated a criminal prosecution against the Plaintiff.

40. That the Defendants, their agents, servants and/or employees knew, or should have known, that there was no probable cause to support the criminal prosecution.

41. That the Defendants, their agents, servants and/or employees brought the criminal prosecution out of malice toward Plaintiff.

42. The remaining counts were terminated in Defendant's favor.

43. As a result of the malicious prosecution of Plaintiff by Defendants, Plaintiff demands judgment against the Defendants and was damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

**AND AS FOR A FIFTH CAUSE OF ACTION**

44. Plaintiff repeats all the allegations contained in paragraphs "1" through "43" inclusive as though more fully set forth herein.

45. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

46. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq. and the law interpreting said section.

47. Defendants' actions were part and parcel of a continuing and ongoing course of conduct as well as a concerted plan and scheme to randomly stop, detain and search African Americans and other Blacks for no other reason than their ethnic makeup.

48. As a result of the foregoing, the Plaintiffs have been damaged in the amount of Five Hundred Thousand (\$500,000) Dollars.

**Wherefore,** Plaintiff demands of the Defendant as follows:

- a. On the First Cause of Action, the sum of \$500,000; and
- b. On the Second Cause of Action, the sum of \$500,000; and
- c. On the Third Cause of Action, the sum of \$500,000; and

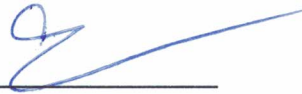


e. On the Fourth Cause of Action, the sum of \$500,000; and

d. On the Fifth Cause of Action, the sum of \$500,000; and

f. Punitive Damages in the sum of \$1,000,000.

Dated: May 4, 2017



**Elliot H. Fuld**  
Attorney for Plaintiff  
930 Grand Concourse, Suite 1G  
Bronx, New York 10451  
(718) 410-4111

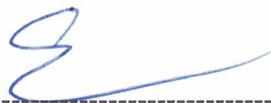
STATE OF NEW YORK

COUNTY OF THE BRONX: ss

ELLIOT H. FULD, being duly sworn, deposes and says:

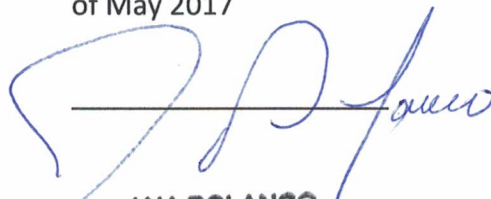
I am the Plaintiffs attorney herein, and I state and verify that I have read the attached Verified Complaint and that the statements contained in that Complaint are either true or upon information and belief, thought to be accurate. I make this verification because the Plaintiff does not reside in the County in which I maintain an office.

Dated: May 4, 2017



ELLIOT H. FULD

Duly sworn to this 4<sup>TH</sup> day  
of May 2017



**ANA POLANCO**  
Notary Public, State of New York  
Reg. No. 01PO6133973  
Qualified in Bronx County  
Commission Expires Sept. 19, 2017